

The Constitution

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THE CONSTITUTION OF THE REPUBLIC OF LITHUANIA

(Adopted by the citizens of the Republic of Lithuania in the Referendum of 25 October 1992)

THE LITHUANIAN NATION

- having created the State of Lithuania many centuries ago,
 - having based its legal foundations on the Lithuanian Statutes and the Constitutions of the Republic of Lithuania,
 - having for centuries staunchly defended its freedom and independence,
 - having preserved its spirit, native language, writing, and customs,
 - embodying the innate right of the human being and the Nation to live and create freely in the land of their fathers and forefathers—in the independent State of Lithuania,
 - fostering national concord in the land of Lithuania,
 - striving for an open, just, and harmonious civil society and a State under the rule of law,
- by the will of the citizens of the reborn State of Lithuania, adopts and proclaims this

CONSTITUTION

CHAPTER I THE STATE OF LITHUANIA

Article 1

The State of Lithuania shall be an independent democratic republic.

Article 2

The State of Lithuania shall be created by the Nation. Sovereignty shall belong to the Nation.

Article 3

No one may restrict or limit the sovereignty of the Nation or arrogate to himself the sovereign powers belonging to the entire Nation.

The Nation and each citizen shall have the right to resist anyone who encroaches on the independence, territorial integrity, and constitutional order of the State of Lithuania by force.

Article 4

The Nation shall execute its supreme sovereign power either directly or through its democratically elected representatives.

Article 5

In Lithuania, state power shall be executed by the Seimas, the President of the Republic and the Government, and the Judiciary.

The scope of power shall be limited by the Constitution.

State institutions shall serve the people.

Article 6

The Constitution shall be an integral and directly applicable act.

Everyone may defend his rights by invoking the Constitution.

Article 7

Any law or other act that contradicts the Constitution shall be invalid.

Only laws that are published shall be valid.

Ignorance of the law shall exempt no one from liability.

Article 8

The seizure of state power or state institutions by force shall be considered anti-constitutional actions, which are unlawful and invalid.

Article 9

The most significant issues concerning the life of the State and the Nation shall be decided by referendum.

In cases established by law, the Seimas shall call a referendum.

A referendum shall also be called if not less than 300,000 citizens with the electoral right so request.

The procedure for calling and conducting referendums shall be established by law.

Article 10

The territory of the State of Lithuania shall be integral and shall not be divided into any state-like formations.

The boundaries of the State may be altered only by an international treaty of the Republic of Lithuania after it is ratified by 4/5 of all the Members of the Seimas.

Article 11

The territorial administrative units of the State of Lithuania and their boundaries shall be established by law.

Article 12

Citizenship of the Republic of Lithuania shall be acquired by birth or on other grounds established by law.

With the exception of individual cases provided for by law, no one may be a citizen of both the Republic of Lithuania and another state at the same time.

The procedure for the acquisition and loss of citizenship shall be established by law.

Article 13

The State of Lithuania shall protect its citizens abroad.

It shall be prohibited to extradite a citizen of the Republic of Lithuania to another state unless an international treaty of the Republic of Lithuania establishes otherwise.

Article 14

Lithuanian shall be the state language.

Article 15

The colours of the flag of the State shall be yellow, green, and red.

The coat of arms of the State shall be a white Vytis on a red field.

The coat of arms and flag of the State, as well as their use, shall be established by law.

Article 16

The anthem of the State shall be "Tautiška giesmė" by Vincas Kudirka.

Article 17

The capital of the State of Lithuania shall be the city of Vilnius, the long-standing historical capital of Lithuania.

CHAPTER II THE HUMAN BEING AND THE STATE

Article 18

Human rights and freedoms shall be innate.

Article 19

The right to life of a human being shall be protected by law.

Article 20

Human liberty shall be inviolable.

No one may be arbitrarily apprehended or detained. No one may be deprived of his liberty otherwise than on the grounds and according to the procedures established by law.

A person apprehended *in flagrante delicto* must, within 48 hours, be brought before a court for the purpose of deciding, in the presence of this person, on the validity of the apprehension. If the court does not adopt a decision to detain the person, the apprehended person shall be released immediately.

Article 21

The human person shall be inviolable.

Human dignity shall be protected by law.

It shall be prohibited to torture or injure a human being, degrade his dignity, subject him to cruel treatment, or to establish such punishments.

No one may be subjected to scientific or medical experimentation without his knowledge and free consent.

Article 22

Private life shall be inviolable.

Personal correspondence, telephone conversations, telegraph messages, and other communications shall be inviolable.

Information concerning the private life of a person may be collected only upon a justified court decision and only according to the law.

The law and courts shall protect everyone from arbitrary or unlawful interference with his private and family life, as well as from encroachment upon his honour and dignity.

Article 23

Property shall be inviolable.

The rights of ownership shall be protected by law.

Property may be taken only for the needs of society according to the procedure established by law and shall be justly compensated for.

Article 24

The home of a human being shall be inviolable.

Without the consent of the resident, it shall not be permitted to enter his home otherwise than by a court decision or according to the procedure established by law when this is necessary to guarantee public order, apprehend a criminal, or save the life, health, or property of a human being.

Article 25

Everyone shall have the right to have his own convictions and freely express them.

No one must be hindered from seeking, receiving, or imparting information and ideas.

The freedom to express convictions, as well as to receive and impart information, may not be limited otherwise than by law when this is necessary to protect human health, honour or dignity, private life, or morals, or to defend the constitutional order.

The freedom to express convictions and to impart information shall be incompatible with criminal actions—incitement to national, racial, religious, or social hatred, incitement to violence or to discrimination, as well as defamation and disinformation.

Citizens shall have the right to receive, according to the procedure established by law, any information held about them by state institutions.

Article 26

Freedom of thought, conscience, and religion shall not be restricted.

Everyone shall have the right to freely choose any religion or belief and, either alone or with others, in private or in public, to profess his religion, to perform religious ceremonies, as well as to practise and teach his belief.

No one may compel another person or be compelled to choose or profess any religion or belief.

The freedom to profess and spread religion or belief may not be limited otherwise than by law and only when this is necessary to guarantee the security of society, public order, the health or morals of people, or other basic rights or freedoms of the person.

Parents and guardians shall, without restrictions, take care of the religious and moral education of their children and wards according to their own convictions.

Article 27

Convictions, practised religion, or belief may not serve as a justification for a crime or failure to observe laws.

Article 28

While implementing his rights and exercising his freedoms, everyone must observe the Constitution and laws of the Republic of Lithuania and must not restrict the rights and freedoms of other people.

Article 29

All persons shall be equal before the law, courts, and other state institutions and officials.
Human rights may not be restricted; no one may be granted any privileges on the grounds of gender, race, nationality, language, origin, social status, belief, convictions, or views.

Article 30

A person whose constitutional rights or freedoms are violated shall have the right to apply to a court. Compensation for material and moral damage inflicted upon a person shall be established by law.

Article 31

A person shall be presumed innocent until proved guilty according to the procedure established by law and declared guilty by an effective court judgment.
A person charged with committing a crime shall have the right to a public and fair hearing of his case by an independent and impartial court.
It shall be prohibited to compel anyone to give evidence against himself, or his family members or close relatives.
Punishment may be imposed or applied only on the grounds established by law.
No one may be punished twice for the same offence.
A person suspected of committing a crime, as well as the accused, shall be guaranteed, from the moment of his apprehension or first interrogation, the right to defence, as well as the right to an advocate.

Article 32

Citizens may move and choose their place of residence in Lithuania freely and may leave Lithuania freely.
These rights may not be restricted otherwise than by law when this is necessary for the protection of the security of the State or the health of people, or for the administration of justice.
Citizens may not be prohibited from returning to Lithuania.
Everyone who is Lithuanian may settle in Lithuania.

Article 33

Citizens shall have the right to participate in the governance of their State both directly and through their democratically elected representatives, as well as the right to enter on equal terms the State Service of the Republic of Lithuania.
Citizens shall be guaranteed the right to criticise the work of state institutions or their officials and to appeal against their decisions. Persecution for criticism shall be prohibited.
Citizens shall be guaranteed the right of petition; the procedure for the implementation of this right shall be established by law.

Article 34

Citizens who, on the day of the election, have reached 18 years of age shall have the electoral right. The right to stand for election shall be established by the Constitution of the Republic of Lithuania and by the election laws.

Citizens who are declared by a court to be legally incapacitated shall not participate in elections.

Article 35

Citizens shall be guaranteed the right to freely form societies, political parties, and associations provided that the aims and activities thereof are not contrary to the Constitution and laws.

No one may be compelled to belong to any society, political party, or association.

The founding and activities of political parties and other political and public organisations shall be regulated by law.

Article 36

Citizens may not be prohibited or hindered from assembling unarmed in peaceful meetings.

This right may not be limited otherwise than by law and only when this is necessary to protect the security of the State or society, public order, the health or morals of people, or the rights or freedoms of other persons.

Article 37

Citizens belonging to ethnic communities shall have the right to foster their language, culture, and customs.

CHAPTER III SOCIETY AND THE STATE

Article 38

The family shall be the basis of society and the State.

Family, motherhood, fatherhood, and childhood shall be under the protection and care of the State.

Marriage shall be concluded upon the free mutual consent of man and woman.

The State shall register marriages, births, and deaths. The State shall also recognise the church registration of marriages.

In the family, the rights of spouses shall be equal.

The right and duty of parents shall be to bring up their children to be honest people and faithful citizens, and to support them until they reach the age of majority.

The duty of children shall be to respect their parents, to take care of them in their old age, and to preserve their heritage.

Article 39

The State shall take care of families raising and bringing up children at home, and shall render them support according to the procedure established by law.

The law shall make a provision for working mothers to be granted paid leave before and after childbirth, as well as favourable working conditions and other concessions.

Under-age children shall be protected by law.

Article 40

State and municipal establishments of teaching and education shall be secular. At the request of parents, they shall provide religious instruction.

Non-state establishments of teaching and education may be founded according to the procedure established by law.

Schools of higher education shall be granted autonomy.

The State shall supervise the activities of establishments of teaching and education.

Article 41

Education shall be compulsory for persons under the age of 16.

Education at state and municipal schools of general education, vocational schools, and schools of further education shall be free of charge.

Higher education shall be accessible to everyone according to individual abilities. Citizens who are good at their studies shall be guaranteed education at state schools of higher education free of charge.

Article 42

Culture, science and research, and teaching shall be free.

The State shall support culture and science, and shall take care of the protection of Lithuanian historical, artistic, and other cultural monuments, as well as other culturally valuable objects.

The law shall protect and defend the spiritual and material interests of an author that are related to scientific, technical, cultural, and artistic work.

Article 43

The State shall recognise the churches and religious organisations that are traditional in Lithuania; other churches and religious organisations shall be recognised provided that they have support in society, and their teaching and practices are not in conflict with the law and public morals.

Churches and religious organisations recognised by the State shall have the rights of a legal person.

Churches and religious organisations shall be free to proclaim their teaching, perform their ceremonies, and have houses of prayer, charity establishments, and schools for the training of priests.

Churches and religious organisations shall conduct their affairs freely according to their canons and statutes.

The status of churches and other religious organisations in the State shall be established by agreement or by law.

The teaching proclaimed by churches and religious organisations, other religious activities, and houses of prayer may not be used for purposes that are in conflict with the Constitution and laws.

There shall be no state religion in Lithuania.

Article 44

Censorship of mass information shall be prohibited.

The State, political parties, political or public organisations, or other institutions or persons may not monopolise the mass media.

Article 45

Ethnic communities of citizens shall independently manage the affairs of their ethnic culture, education, charity, and mutual assistance.

Ethnic communities shall be provided support by the State.

CHAPTER IV

THE NATIONAL ECONOMY AND LABOUR

Article 46

The economy of Lithuania shall be based on the right of private ownership, freedom of individual economic activity, and economic initiative.

The State shall support economic efforts and initiative that are useful to society.

The State shall regulate economic activity so that it serves the general welfare of the Nation.

The law shall prohibit the monopolisation of production and the market, and shall protect freedom of fair competition.

The State shall defend the interests of the consumer.

Article 47

The subsurface, as well as the internal waters, forests, parks, roads, and historical, archaeological, and cultural objects of state importance, shall belong by right of exclusive ownership to the Republic of Lithuania.

The Republic of Lithuania shall have the exclusive rights to the airspace over its territory, its continental shelf, and the economic zone in the Baltic Sea.

In the Republic of Lithuania, foreign entities may acquire the ownership of land, internal waters, and forests according to a constitutional law.

Plots of land may belong to a foreign state by right of ownership for the establishment of its diplomatic missions and consular posts according to the procedure and conditions established by law.

Amendments to the Article:

No. I-1390, 20-06-1996, Valstybės žinios (Official Gazette), 1996, No. 64-1501 (05-07-1996)

No. IX-1305, 23-01-2003, Valstybės žinios (Official Gazette), 2003, No. 14-540 (07-02-2003)

Article 48

Everyone may freely choose a job or business, and shall have the right to have proper, safe, and healthy conditions at work, as well as to receive fair pay for work and social security in the event of unemployment.

The work of foreigners in the Republic of Lithuania shall be regulated by law.

Forced labour shall be prohibited.

Military service or alternative service performed instead of military service, as well as work performed by citizens in time of war, natural disaster, epidemics, or other extreme cases, shall not be considered forced labour.

In cases where persons convicted by a court perform work regulated by law, such work shall not be considered forced labour, either.

Article 49

Every working person shall have the right to rest and leisure, as well as to annual paid leave.

The length of working time shall be established by law.

Article 50

Trade unions shall be established freely and shall function independently. They shall defend the professional, economic, and social rights and interests of employees.

All trade unions shall have equal rights.

Article 51

While defending their economic and social interests, employees shall have the right to strike. Limitations on this right and the conditions and procedure for its implementation shall be established by law.

Article 52

The State shall guarantee its citizens the right to receive old-age and disability pensions, as well as social assistance in the event of unemployment, sickness, widowhood, the loss of the breadwinner, and in other cases provided for by law.

Article 53

The State shall take care of the health of people and shall guarantee medical aid and services for a person in the event of sickness. The procedure for providing medical aid to citizens free of charge at state medical establishments shall be established by law.

The State shall promote the physical culture of society and shall support sport.

The State and each person must protect the environment from harmful influences.

Article 54

The State shall take care of the protection of the natural environment, wildlife and plants, individual objects of nature, and areas of particular value, and shall supervise the sustainable use of natural resources, as well as their restoration and increase.

The destruction of land and subsurface, the pollution of water and air, radioactive impact on the environment, as well as the depletion of wildlife and plants, shall be prohibited by law.

**CHAPTER V
THE SEIMAS****Article 55**

The Seimas shall consist of representatives of the Nation—141 Members of the Seimas, who shall be elected for a four-year term on the basis of universal, equal, and direct suffrage by secret ballot.

The Seimas shall be deemed elected when not less than 3/5 of the Members of the Seimas are elected.

The procedure for the election of the Members of the Seimas shall be established by law.

Article 56

Any citizen of the Republic of Lithuania who is not bound by an oath or a pledge to a foreign state, and who, on the election day, is not younger than 25 years of age and permanently resides in Lithuania, may stand for election as a Member of the Seimas.

Persons who have not served punishment imposed by a court judgment, as well as persons declared by a court to be legally incapacitated, may not stand for election as a Member of the Seimas.

Article 57

A regular election to the Seimas shall be held in the year of the expiry of the powers of the Members of the Seimas on the second Sunday of October.

A regular election to the Seimas following an early election to the Seimas shall be held at the time

specified in the first paragraph of this Article.

Amendments to the Article:

No. IX-2344, 13-07-2004, Valstybės žinios (Official Gazette), 2004, No. 111-4124 (17-07-2004)

Article 58

An early election to the Seimas may be held upon the decision of the Seimas adopted by not less than a 3/5 majority vote of the Members of the Seimas.

An early election to the Seimas may also be called by the President of the Republic:

- 1) if the Seimas fails to adopt a decision on the new programme of the Government within 30 days of its presentation, or if the Seimas twice in succession gives no assent to the programme of the Government within 60 days of its first presentation;
- 2) upon the proposal of the Government, if the Seimas expresses direct no confidence in the Government.

The President of the Republic may not call an early election to the Seimas if the term of office of the President of the Republic expires in less than 6 months, or if 6 months have not passed since the early election to the Seimas.

The day of election to the new Seimas shall be specified in the resolution of the Seimas or in the act of the President of the Republic on the early election to the Seimas. The election to the new Seimas must be held within 3 months of the adoption of the decision on the early election.

Article 59

The term of powers of the Members of the Seimas shall begin to be counted from the day on which the newly elected Seimas convenes for the first sitting. The term of powers of the previously elected Members of the Seimas shall expire at the beginning of this sitting.

An elected Member of the Seimas shall acquire all the rights of a representative of the Nation only after taking an oath at the Seimas to be faithful to the Republic of Lithuania.

A Member of the Seimas who either does not take the oath according to the procedure established by law or takes a conditional oath shall lose the mandate of a Member of the Seimas. The Seimas shall adopt a corresponding resolution thereon.

While in office, the Members of the Seimas shall follow the Constitution of the Republic of Lithuania, the interests of the State, as well as their own consciences, and may not be restricted by any mandates.

Article 60

The duties of the Members of the Seimas, with the exception of their duties at the Seimas, shall be incompatible with any other duties at state institutions or organisations, or with work in business, commercial, or other private establishments or enterprises. During their term of office, the Members of the Seimas shall be exempt from the duty to perform national defence service.

A Member of the Seimas may be appointed only either as the Prime Minister or a Minister.

The work of the Members of the Seimas, as well as all expenses relating to their parliamentary activities, shall be remunerated from the State Budget. A Member of the Seimas may not receive any other remuneration, with the exception of remuneration for creative activities.

The duties, rights, and guarantees of the activities of a Member of the Seimas shall be established by law.

Article 61

A Member of the Seimas shall have the right to submit an inquiry to the Prime Minister, the Ministers, and the heads of other state institutions formed or elected by the Seimas. The said persons must respond orally or in writing during the session of the Seimas according to the procedure established by

the Seimas.

During a session of the Seimas, a group of not less than 1/5 of the Members of the Seimas may interpellate the Prime Minister or a Minister.

Upon considering the response of the Prime Minister or the Minister to the interpellation, the Seimas may decide that the response is not satisfactory, and, by a majority vote of half of all the Members of the Seimas, may express no confidence in the Prime Minister or the Minister.

The voting procedure shall be established by law.

Article 62

The person of a Member of the Seimas shall be inviolable.

The Members of the Seimas may not be held criminally liable or be detained, or have their liberty restricted otherwise, without the consent of the Seimas.

The Members of the Seimas may not be persecuted for their votes or speeches at the Seimas. However, they may be held liable according to the general procedure for personal insult or defamation.

Article 63

The powers of a Member of the Seimas shall cease:

- 1) upon the expiry of the term of powers, or when the Seimas elected in an early election convenes for the first sitting;
- 2) upon his death;
- 3) upon his resignation;
- 4) when he is declared by a court to be legally incapacitated;
- 5) when the Seimas revokes his mandate according to the procedure for impeachment proceedings;
- 6) when the election is declared invalid, or the law on election is grossly violated;
- 7) when he takes up or does not give up employment that is incompatible with the duties of a Member of the Seimas;
- 8) when he loses his citizenship of the Republic of Lithuania.

Article 64

Every year, the Seimas shall convene for two regular sessions—in spring and autumn. The spring session shall commence on the 10th of March and shall end on the 30th of June. The autumn session shall commence on the 10th of September and shall end on the 23rd of December. The Seimas may decide to prolong a session.

Extraordinary sessions shall be convened by the Speaker of the Seimas upon the proposal of not less than one-third of all the Members of the Seimas, or by the President of the Republic in cases provided for in the Constitution.

Article 65

The President of the Republic shall convene the first sitting of the newly elected Seimas, which must be held within 15 days of the election of the Seimas. If the President of the Republic fails to convene the Seimas, the Members of the Seimas shall assemble by themselves on the day following the expiry of the 15-day period.

Article 66

Sittings of the Seimas shall be presided over by the Speaker of the Seimas, or his Deputy.

The first sitting of the Seimas after its election shall be opened by the eldest Member of the Seimas.

Article 67

The Seimas:

- 1) shall consider and adopt amendments to the Constitution;
- 2) shall pass laws;
- 3) shall adopt resolutions on referendums;
- 4) shall call elections for the President of the Republic of Lithuania;
- 5) shall establish state institutions provided for by law, and appoint and release their heads;
- 6) shall or shall not give its assent to the candidate proposed by the President of the Republic for the post of the Prime Minister;
- 7) shall consider the programme of the Government, presented by the Prime Minister, and decide whether to give its assent to it;
- 8) shall, upon the proposal of the Government, establish and abolish the ministries of the Republic of Lithuania;
- 9) shall supervise the activities of the Government and may express no confidence in the Prime Minister or a Minister;
- 10) shall appoint the justices and Presidents of the Constitutional Court and the Supreme Court;
- 11) shall appoint and release the Auditor General and the Chairperson of the Board of the Bank of Lithuania;
- 12) shall call elections to municipal councils;
- 13) shall form the Central Electoral Commission and alter its composition;
- 14) shall approve the State Budget and supervise its execution;
- 15) shall establish state taxes and other compulsory payments;
- 16) shall ratify and denounce international treaties of the Republic of Lithuania and consider other issues of foreign policy;
- 17) shall establish the administrative division of the Republic;
- 18) shall establish the state awards of the Republic of Lithuania;
- 19) shall issue acts of amnesty;
- 20) shall impose direct rule and martial law, declare states of emergency, announce mobilisation, and adopt a decision to use the armed forces.

Article 68

The right of legislative initiative at the Seimas shall belong to the Members of the Seimas, the President of the Republic, and the Government.

The citizens of the Republic of Lithuania shall also have the right of legislative initiative. 50,000 citizens of the Republic of Lithuania who have the electoral right may submit a draft law to the Seimas, and the Seimas must consider it.

Article 69

Laws shall be adopted at the Seimas according to the procedure established by law.

Laws shall be deemed adopted if the majority of the Members of the Seimas participating in the sitting vote in favour thereof.

Constitutional laws of the Republic of Lithuania shall be adopted if more than half of all the Members of the Seimas vote in favour thereof, and they shall be altered by not less than a 3/5 majority vote of all the Members of the Seimas. The Seimas shall establish the list of constitutional laws by a 3/5 majority vote of the Members of the Seimas.

The provisions of laws of the Republic of Lithuania may also be adopted by referendum.

Article 70

Laws adopted by the Seimas shall come into force after they are signed and officially promulgated by the President of the Republic, unless the laws themselves establish a later date for their entry into force.

Other acts adopted by the Seimas, as well as the Statute of the Seimas, shall be signed by the Speaker of the Seimas. The said acts shall come into force on the day following their publication, unless the acts themselves establish another procedure for their entry into force.

Article 71

Within ten days of receiving a law adopted by the Seimas, the President of the Republic either shall sign and officially promulgate the law or shall, upon reasonable grounds, refer it back to the Seimas for reconsideration.

If the law adopted by the Seimas is neither referred back nor signed by the President of the Republic within the specified period, the law shall come into force after it is signed and officially promulgated by the Speaker of the Seimas.

A law or another act adopted by referendum must, within 5 days, be signed and officially promulgated by the President of the Republic.

If the President of the Republic does not sign and promulgate such a law within the specified period, the law shall come into force after it is signed and officially promulgated by the Speaker of the Seimas.

Article 72

The Seimas may consider anew and adopt a law referred back by the President of the Republic.

The law reconsidered by the Seimas shall be deemed adopted if the amendments and supplements submitted by the President of the Republic are adopted, or if more than 1/2 of all the Members of the Seimas vote for the law, or, in cases where such a law is a constitutional law—if not less than 3/5 of all the Members of the Seimas vote in favour thereof.

The President of the Republic must sign such laws within three days and promulgate them immediately.

Article 73

Complaints of citizens about the abuse of authority or bureaucratic intransigence by state and municipal officials (with the exception of judges) shall be examined by the Seimas Ombudsmen, who shall have the right to submit a proposal before a court for dismissing the guilty officials from office.

The powers of the Seimas Ombudsmen shall be established by law.

The Seimas shall also establish, when necessary, other institutions of control. Their system and powers shall be established by law.

Article 74

The President of the Republic, the President and justices of the Constitutional Court, the President and justices of the Supreme Court, the President and judges of the Court of Appeal, as well as any Members of the Seimas, who grossly violate the Constitution or breach their oath, or are found to have committed a crime, may be removed from office or have the mandate of a Member of the Seimas revoked by a 3/5 majority vote of all the Members of the Seimas. This shall be performed according to the procedure for impeachment proceedings, which shall be established by the Statute of the Seimas.

Article 75

The officials appointed or elected by the Seimas, with the exception of the persons specified in Article 74 of the Constitution, shall be dismissed from office when the Seimas expresses no confidence in them by a majority vote of all the Members of the Seimas.

Article 76

The structure and procedure of activities of the Seimas shall be established by the Statute of the Seimas. The Statute of the Seimas shall have the force of a law.

CHAPTER VI THE PRESIDENT OF THE REPUBLIC

Article 77

The President of the Republic shall be the Head of State.

The President of the Republic shall represent the State of Lithuania and shall perform everything with which he is charged by the Constitution and laws.

Article 78

A Lithuanian citizen by descent who has lived in Lithuania for not less than the last three years, provided that he has reached the age of not less than 40 prior to the election day and may stand for election as a Member of the Seimas, may stand for election as the President of the Republic.

The President of the Republic shall be elected by the citizens of the Republic of Lithuania for a five-year term by universal, equal, and direct suffrage by secret ballot.

The same person may not be elected the President of the Republic for more than two consecutive terms.

Article 79

Any citizen of the Republic of Lithuania who meets the conditions set forth in the first paragraph of Article 78 and collects the signatures of not less than 20,000 voters shall be registered as a presidential candidate.

The number of candidates for the post of the President of the Republic shall not be limited.

Article 80

A regular election of the President of the Republic shall be held on the last Sunday two months before the expiry of the term of office of the President of the Republic.

Article 81

The candidate for the post of the President of the Republic who, during the first round of voting in which not less than half of all the voters participate, receives the votes of more than half of all the voters who participate in the election shall be deemed elected. If less than half of all the voters participate in the election, the candidate who receives the greatest number of votes, but not less than 1/3 of the votes of all the voters, shall be deemed elected.

If, during the first round of voting, no single candidate gets the requisite number of votes, the second round of voting shall be held two weeks later with the two candidates who have received the greatest number of votes standing against each other. The candidate who receives more votes shall be deemed

elected.

If no more than two candidates take part in the first round, and neither of them receives the requisite number of votes, a repeat election shall be held.

Article 82

On the day following the expiry of the term of office of the President of the Republic, the elected President of the Republic shall take office after he, in Vilnius, in the presence of the representatives of the Nation—the Members of the Seimas, takes an oath to the Nation to be faithful to the Republic of Lithuania and the Constitution, to conscientiously fulfil the duties of his office, and to be equally just to all.

A re-elected President of the Republic shall also take the oath.

The act on taking the oath of the President of the Republic shall be signed by him and by the President of the Constitutional Court or, in the absence of the latter, by a justice of the Constitutional Court.

Article 83

The President of the Republic may not be a Member of the Seimas, may not hold any other office, and may not receive any remuneration other than the remuneration established for the President of the Republic and remuneration for creative activities.

A person elected the President of the Republic must suspend his activities in political parties and political organisations until the beginning of a new campaign for the election of the President of the Republic.

Article 84

The President of the Republic:

- 1) shall decide the basic issues of foreign policy and, together with the Government, conduct foreign policy;
- 2) shall sign international treaties of the Republic of Lithuania and submit them to the Seimas for ratification;
- 3) shall, upon submission by the Government, appoint and recall the diplomatic representatives of the Republic of Lithuania to foreign states and international organisations; shall receive the letters of credence and recall of the diplomatic representatives of foreign states; and shall confer the highest diplomatic ranks and special titles;
- 4) shall, upon the assent of the Seimas, appoint the Prime Minister; shall charge the Prime Minister with forming the Government; and shall approve the composition of the formed Government;
- 5) shall, upon the assent of the Seimas, release the Prime Minister from duties;
- 6) shall accept the powers returned by the Government upon the election of a new Seimas and charge the Government with exercising its duties until a new Government is formed;
- 7) shall accept the resignation of the Government and, when necessary, charge it with continuing to exercise its duties, or charge one of the Ministers with exercising the duties of the Prime Minister, until a new Government is formed; shall accept the resignations of Ministers and may charge them with exercising their duties until a new respective Minister is appointed;
- 8) shall, upon the resignation of the Government or after it returns its powers, within 15 days, propose the candidate for the post of the Prime Minister for consideration by the Seimas;
- 9) shall appoint and release Ministers upon submission by the Prime Minister;
- 10) shall, according to the established procedure, appoint and release state officials provided for by law;
- 11) shall propose candidates for the posts of the justices of the Supreme Court for consideration by the Seimas and, upon the appointment of all the justices of the Supreme Court, propose the candidate from among them for the post of the President of the Supreme Court to be appointed by the Seimas; shall appoint the judges of the Court of Appeal and, from among them, the President of the Court of Appeal,

provided that the Seimas gives its assent to the candidates proposed; shall appoint the judges and presidents of regional and district courts and change their places of work; in cases provided for by law, shall submit that the Seimas release judges from their duties; shall, upon the assent of the Seimas, appoint and release the Prosecutor General of the Republic of Lithuania;

12) shall propose candidates for the posts of three justices of the Constitutional Court and, upon the appointment of all the justices of the Constitutional Court, propose the candidate from among them for the post of the President of the Constitutional Court to be appointed by the Seimas;

13) shall propose candidates for the posts of the Auditor General and the Chairperson of the Board of the Bank of Lithuania for consideration by the Seimas; may submit that the Seimas express no confidence in them;

14) shall, upon the assent of the Seimas, appoint and release the Commander of the Armed Forces and the Head of the Security Service;

15) shall confer the highest military ranks;

16) shall, in the event of an armed attack threatening the sovereignty of the State or its territorial integrity, adopt decisions concerning defence against the armed aggression, the imposition of martial law, as well as mobilisation, and submit these decisions for approval at the next sitting of the Seimas;

17) shall declare a state of emergency according to the procedure and in cases established by law and present this decision for approval at the next sitting of the Seimas;

18) shall make annual reports at the Seimas on the situation in Lithuania and the domestic and foreign policies of the Republic of Lithuania;

19) shall, in cases provided for in the Constitution, convene an extraordinary session of the Seimas;

20) shall call regular elections to the Seimas and, in cases provided for in the second paragraph of Article 58 of the Constitution, call early elections to the Seimas;

21) shall grant citizenship of the Republic of Lithuania according to the procedure established by law;

22) shall confer state awards;

23) shall grant pardons to convicted persons;

24) shall sign and promulgate laws adopted by the Seimas or refer them back to the Seimas according to the procedure established in Article 71 of the Constitution.

Amendments to the Article:

No. IX-1378, 20-03-2003, Valstybės žinios (Official Gazette), 2003, No. 32-1315 (02-04-2003)

Article 85

The President of the Republic, implementing the powers vested in him, shall issue acts-decrees. To be valid, the decrees issued by the President of the Republic for the purposes specified in Items 3, 15, 17, and 21 of Article 84 of the Constitution must be signed by the Prime Minister or an appropriate Minister. Responsibility for such a decree shall lie with the Prime Minister or the Minister who signs it.

Article 86

The person of the President of the Republic shall be inviolable: while in office, he may be neither detained nor held criminally or administratively liable.

The President of the Republic may be removed from office only for a gross violation of the Constitution or a breach of the oath, or when he is found to have committed a crime. The issue of the removal of the President of the Republic from office shall be decided by the Seimas according to the procedure for impeachment proceedings.

Article 87

After, in cases provided for in the second paragraph of Article 58 of the Constitution, the President of the Republic calls an early election to the Seimas, the newly elected Seimas may, by a 3/5 majority vote of all the Members of the Seimas and within 30 days of the day of the first sitting, call an early election

of the President of the Republic.

The President of the Republic wishing to participate in the election shall be immediately registered as a candidate.

The President of the Republic re-elected in such an election shall be deemed elected for the second term of office provided that more than three years of his first term of office have expired prior to the election. If less than three years of the first term of office have expired, the President of the Republic shall only be elected for the remainder of the first term of office, which shall not be considered the second term of office.

If an early election of the President of the Republic is called during his second term of office, the incumbent President of the Republic may only be elected for the remainder of the second term of office.

Article 88

The powers of the President of the Republic shall cease:

- 1) upon the expiry of the period for which he is elected;
- 2) after an early election of the President of the Republic takes place;
- 3) upon his resignation from office;
- 4) upon his death;
- 5) when the Seimas removes him from office according to the procedure for impeachment proceedings;
- 6) when the Seimas, taking into consideration the conclusion of the Constitutional Court, by a 3/5 majority vote of all the Members of the Seimas, adopts a resolution stating that the state of health of the President of the Republic does not allow him to hold office.

Article 89

In the event that the President of the Republic dies, resigns, or is removed from office according to the procedure for impeachment proceedings, or the Seimas decides that the state of health of the President of the Republic does not allow him to hold office, the office of the President of the Republic shall temporarily be held by the Speaker of the Seimas. In such a case, the Speaker of the Seimas shall lose his powers at the Seimas, and his office shall temporarily be held, upon commissioning by the Seimas, by his Deputy. In the enumerated cases, the Seimas must, within 10 days, call an election of the President of the Republic, which must be held within two months. If the Seimas cannot convene and call the election of the President of the Republic, the election shall be called by the Government.

The Speaker of the Seimas shall substitute for the President of the Republic when the latter is temporarily abroad or falls ill and, for this reason, is temporarily unable to hold office.

While temporarily substituting for the President of the Republic, the Speaker of the Seimas may neither call an early election to the Seimas nor appoint or release Ministers without the consent of the Seimas. During the said period, the Seimas may not consider the issue of no confidence in the Speaker of the Seimas.

With the exception of the cases specified in this Article, the powers of the President of the Republic may not be executed by any other persons or institutions.

Article 90

The President of the Republic shall have a residence. The financing of the President of the Republic and of his residence shall be established by law.

CHAPTER VII

THE GOVERNMENT OF THE REPUBLIC OF LITHUANIA

Article 91

The Government of the Republic of Lithuania shall consist of the Prime Minister and Ministers.

Article 92

The Prime Minister shall, upon the assent of the Seimas, be appointed and released by the President of the Republic.

Ministers shall, upon submission by the Prime Minister, be appointed and released by the President of the Republic.

The Prime Minister, within 15 days of his appointment, shall form and present to the Seimas the Government, approved by the President of the Republic, and shall submit the programme of the formed Government for consideration by the Seimas.

The Government shall return its powers to the President of the Republic after the election of the Seimas or after the election of the President of the Republic.

A new Government shall receive the powers to act after the Seimas gives assent to its programme by a majority vote of the Members of the Seimas participating in the sitting.

Article 93

Before taking office, the Prime Minister and Ministers shall take an oath at the Seimas to be faithful to the Republic of Lithuania and to observe the Constitution and laws. The text of the oath shall be established by the Law on the Government.

Article 94

The Government of the Republic of Lithuania:

- 1) shall manage national affairs, protect the territorial inviolability of the Republic of Lithuania, and guarantee state security and public order;
- 2) shall execute laws, the resolutions of the Seimas on the implementation of laws, as well as the decrees of the President of the Republic;
- 3) shall co-ordinate the activities of ministries and other establishments of the Government;
- 4) shall prepare a draft State Budget and submit it to the Seimas; shall execute the State Budget and submit to the Seimas a report on the execution of the budget;
- 5) shall prepare draft laws and present them to the Seimas for consideration;
- 6) shall establish diplomatic ties and maintain relations with foreign states and international organisations;
- 7) shall discharge other duties prescribed to the Government by the Constitution and other laws.

Article 95

The Government of the Republic of Lithuania shall decide the affairs of state governance at its sittings by adopting resolutions by a majority vote of all the members of the Government. The Auditor General may also participate in the sittings of the Government.

The resolutions of the Government shall be signed by the Prime Minister and the Minister of the respective area.

Article 96

The Government of the Republic of Lithuania shall be jointly and severally responsible to the Seimas for the general activities of the Government.

Ministers, in directing the areas of governance entrusted to them, shall be responsible to the Seimas and the President of the Republic, and directly subordinate to the Prime Minister.

Article 97

The Prime Minister shall represent the Government of the Republic of Lithuania and shall head its activities.

In the absence of the Prime Minister, or when he is unable to hold office, the President of the Republic, upon submission by the Prime Minister, shall assign one of the Ministers to substitute for the Prime Minister during a period not exceeding 60 days; when there is no such submission, the President of the Republic shall assign one of the Ministers to substitute for the Prime Minister.

Article 98

Ministers shall head their respective ministry, shall decide on issues belonging to the competence of their ministry, and shall also discharge other functions provided for by law.

Only another member of the Government appointed by the Prime Minister may temporarily substitute for a Minister.

Article 99

The Prime Minister and Ministers may not hold any other elective or appointive office, may not work in any business, commercial, or other private establishments or enterprises, nor may they receive any remuneration other than that established for their respective governmental duties and payment for creative activities.

Article 100

The Prime Minister and Ministers may not be held criminally liable or be detained, or have their liberty restricted otherwise, without the prior consent of the Seimas or, in the period between the sessions of the Seimas, without the prior consent of the President of the Republic.

Article 101

At the request of the Seimas, the Government or individual Ministers must give an account of their activities to the Seimas.

When more than half of the Ministers are replaced, the Government must once again receive its powers from the Seimas. Otherwise, the Government must resign.

The Government must also resign in the following cases:

- 1) when the Seimas twice in succession does not give its assent to the programme of the newly formed Government;
- 2) when the Seimas, by a majority vote of all the Members of the Seimas and by secret ballot, expresses no confidence in the Government or in the Prime Minister;
- 3) when the Prime Minister resigns or dies;
- 4) after the election to the Seimas, when a new Government is formed.

A Minister must resign when more than half of all the Members of the Seimas, by secret ballot, express no confidence in him.

The President of the Republic shall accept the resignation of the Government or a Minister.

CHAPTER VIII THE CONSTITUTIONAL COURT

Article 102

The Constitutional Court shall decide whether the laws and other acts of the Seimas are in conflict with the Constitution, and whether the acts of the President of the Republic and the Government are in conflict with the Constitution or laws.

The status of the Constitutional Court and the procedure for the execution of its powers shall be established by the Law on the Constitutional Court of the Republic of Lithuania.

Article 103

The Constitutional Court shall consist of 9 justices, each appointed for a single nine-year term of office. Every three years, one-third of the Constitutional Court shall be reconstituted. The Seimas shall appoint three candidates for justices of the Constitutional Court from the candidates submitted by the President of the Republic, the Speaker of the Seimas, and the President of the Supreme Court, and shall appoint them as justices.

The Seimas shall appoint the President of the Constitutional Court from among its justices upon submission by the President of the Republic.

The citizens of the Republic of Lithuania with an impeccable reputation, higher education in law, and not less than a 10-year length of service in the field of law or in a branch of science and education as a lawyer may be appointed as justices of the Constitutional Court.

Article 104

While in office, the justices of the Constitutional Court shall be independent of any other state institution, person, or organisation, and shall follow only the Constitution of the Republic of Lithuania. Before entering office, the justices of the Constitutional Court shall take an oath at the Seimas to be faithful to the Republic of Lithuania and the Constitution.

The limitations established on work and political activities for the judges of courts shall also apply to the justices of the Constitutional Court.

The justices of the Constitutional Court shall have the same rights concerning the inviolability of their person as the Members of the Seimas.

Article 105

The Constitutional Court shall consider and adopt decisions on whether the laws of the Republic of Lithuania or other acts adopted by the Seimas are in conflict with the Constitution of the Republic of Lithuania.

The Constitutional Court shall also consider whether the following are in conflict with the Constitution and laws:

- 1) the acts of the President of the Republic;
- 2) the acts of the Government of the Republic.

The Constitutional Court shall present conclusions on:

- 1) whether there were the violations of election laws during the elections of the President of the Republic or the elections of the Members of the Seimas;
- 2) whether the state of health of the President of the Republic allows him to continue to hold office;
- 3) whether the international treaties of the Republic of Lithuania are in conflict with the Constitution;
- 4) whether the concrete actions of the Members of the Seimas and state officials against whom an impeachment case has been instituted are in conflict with the Constitution.

Article 106

The Government, not less than 1/5 of all the Members of the Seimas, and courts shall have the right to apply to the Constitutional Court concerning the acts specified in the first paragraph of Article 105.

Not less than 1/5 of all the Members of the Seimas and courts shall have the right to apply to the

Constitutional Court concerning the conformity of the acts of the President of the Republic with the Constitution and laws.

Not less than 1/5 of all the Members of the Seimas, courts, as well as the President of the Republic, shall have the right to apply to the Constitutional Court concerning the conformity of the acts of the Government with the Constitution and laws.

Every person shall have the right to apply to the Constitutional Court concerning the acts specified in the first and second paragraphs of Article 105 if a decision adopted on the basis of these acts has violated the constitutional rights or freedoms of the person and the person has exhausted all legal remedies. The procedure for implementing this right shall be established by the Law on the Constitutional Court.

As supplemented with this paragraph (to come into force on 1 September 2019)

No XIII-2004, 21-03-2019, published in the Register of Legal Acts, 02-04-2019, identification code 2019-05330

An application by the President of the Republic to the Constitutional Court, or a resolution of the Seimas, asking for an investigation into the conformity of an act with the Constitution shall suspend the validity of the act.

The conclusions of the Constitutional Court may be requested by the Seimas or, in cases concerning elections to the Seimas or international treaties, by the President of the Republic.

The Constitutional Court shall have the right to refuse to accept a case for consideration or to prepare a conclusion if the application is based on non-legal reasoning.

Article 107

A law (or part thereof) of the Republic of Lithuania or another act (or part thereof) of the Seimas, an act of the President of the Republic, or an act (or part thereof) of the Government may not be applied from the day of the official publication of the decision of the Constitutional Court that the act in question (or part thereof) is in conflict with the Constitution of the Republic of Lithuania.

The decisions of the Constitutional Court on the issues assigned to its competence by the Constitution shall be final and not subject to appeal.

In the case heard subsequent to an application by a person referred to in the fourth paragraph of Article 106 of the Constitution, the decision of the Constitutional Court that a law (or part thereof) of the Republic of Lithuania or another act (or part thereof) of the Seimas, an act of the President of the Republic, or an act (or part thereof) of the Government is in conflict with the Constitution shall constitute a basis for renewing, according to the procedure established by law, the proceedings regarding the implementation of the violated constitutional rights or freedoms of the person.

As supplemented with this paragraph (to come into force on 1 September 2019)

No XIII-2004, 21-03-2019, published in the Register of Legal Acts, 02-04-2019, identification code 2019-05330

On the basis of the conclusions of the Constitutional Court, the Seimas shall take a final decision on the issues set forth in the third paragraph of Article 105 of the Constitution.

Article 108

The powers of a justice of the Constitutional Court shall cease:

- 1) upon the expiry of the term of powers;
- 2) upon his death;
- 3) upon his resignation;
- 4) when he is incapable of holding office due to the state of his health;
- 5) when the Seimas removes him from office in accordance with the procedure for impeachment proceedings.

CHAPTER IX COURTS

Article 109

In the Republic of Lithuania, justice shall be administered only by courts.
When administering justice, judges and courts shall be independent.
When considering cases, judges shall obey only the law.
Courts shall adopt decisions in the name of the Republic of Lithuania.

Article 110

Judges may not apply any laws that are in conflict with the Constitution.
In cases when there are grounds to believe that a law or another legal act that should be applied in a concrete case is in conflict with the Constitution, the judge shall suspend the consideration of the case and shall apply to the Constitutional Court, requesting that it decide whether the law or another legal act in question is in compliance with the Constitution.

Article 111

The courts of the Republic of Lithuania shall be the Supreme Court of Lithuania, the Court of Appeal of Lithuania, regional courts, and district courts.
For the consideration of administrative, labour, family, and cases of other categories, specialised courts may be established according to the law.
No courts with extraordinary powers may be established in the Republic of Lithuania in time of peace.
The formation and competence of courts shall be established by the Law on Courts of the Republic of Lithuania.

Article 112

In Lithuania, only the citizens of the Republic of Lithuania may be judges.
The justices of the Supreme Court, as well as its President chosen from among them, shall be appointed and released by the Seimas upon submission by the President of the Republic.
The judges of the Court of Appeal, as well as its President chosen from among them, shall be appointed by the President of the Republic upon the assent of the Seimas.
The judges and presidents of district, regional, and specialised courts shall be appointed, and their places of work shall be changed, by the President of the Republic.
A special institution of judges, as provided for by law, shall advise the President of the Republic on the appointment, promotion, and transfer of judges, or their release from duties.
A person appointed as a judge shall, according to the procedure established by law, take an oath to be faithful to the Republic of Lithuania and to administer justice only according to the law.

Article 113

Judges may not hold any other elective or appointive office, or work in any business, commercial, or other private establishments or enterprises. Nor may they receive any remuneration other than the remuneration established for judges and payment for educational or creative activities.
Judges may not participate in the activities of political parties or other political organisations.

Article 114

Interference by any institutions of state power and governance, Members of the Seimas or other officials, political parties, political or public organisations, or citizens with the activities of a judge or court shall be prohibited and shall lead to liability provided for by law.

Judges may not be held criminally liable or be detained, or have their liberty restricted otherwise, without the consent of the Seimas or, in the period between the sessions of the Seimas, without the consent of the President of the Republic of Lithuania.

Article 115

The judges of the courts of the Republic of Lithuania shall be released from their duties according to the procedure established by law in the following cases:

- 1) of their own will;
- 2) upon the expiry of the term of powers, or upon reaching the pensionable age established by law;
- 3) due to their state of health;
- 4) upon election to another office, or upon transfer, with their consent, to another place of work;
- 5) when their conduct discredits the name of judges;
- 6) upon the entry into effect of court judgments convicting them.

Article 116

For a gross violation of the Constitution or a breach of the oath, or when they are found to have committed a crime, the President and justices of the Supreme Court, as well as the President and judges of the Court of Appeal, may be removed from office by the Seimas according to the procedure for impeachment proceedings.

Article 117

In all courts, the consideration of cases shall be public. A closed court hearing may be held in order to protect the secrecy of private or family life, or where the public consideration of the case might disclose a state, professional, or commercial secret.

In the Republic of Lithuania, court proceedings shall be conducted in the state language.

Persons who do not have sufficient knowledge of the Lithuanian language shall be guaranteed the right to participate in the investigation and court proceedings through a translator.

Article 118

A pre-trial investigation shall be organised and directed, and charges on behalf of the State in criminal cases shall be upheld, by prosecutors.

In cases established by law, prosecutors shall defend the rights and legitimate interests of the person, society, and the State.

When performing their functions, prosecutors shall be independent and shall obey only the law.

The Prosecution Service of the Republic of Lithuania shall be the Office of the Prosecutor General and territorial prosecutor's offices.

The Prosecutor General shall be appointed and released by the President of the Republic upon the assent of the Seimas.

The procedure for the appointment and release of prosecutors, as well as their status, shall be established by law.

Amendments to the Article:

No. IX-1379, 20-03-2003, Valstybės žinios (Official Gazette), 2003, No. 32-1316 (02-04-2003)

CHAPTER X LOCAL SELF-GOVERNMENT AND GOVERNANCE

Article 119

The right to self-government shall be guaranteed to the administrative territorial units of the State, which are provided for by law. This right shall be implemented through the respective municipal councils.

The members of municipal councils shall be elected for a four-year term, as provided for by law, from among the citizens of the Republic of Lithuania and other permanent residents of the respective administrative units by the citizens of the Republic of Lithuania and other permanent residents of these administrative units on the basis of universal, equal, and direct suffrage by secret ballot.

The procedure for the organisation and activities of self-government institutions shall be established by law.

For the direct implementation of the laws of the Republic of Lithuania, as well as the decisions of the Government and the municipal council, the municipal council shall form executive bodies accountable to it.

Amendments to the Article:

No. VIII-32, 12-12-1996, Valstybės žinios (Official Gazette), 1996, No. 122-2863 (18-12-1996)

No. IX-959, 20-06-2002, Valstybės žinios (Official Gazette), 2002, No. 65-2629 (28-06-2002)

Article 120

The State shall support municipalities.

Municipalities shall act freely and independently within their competence defined by the Constitution and laws.

Article 121

Municipalities shall draft and approve their budgets.

Municipal councils shall have the right, within the limits and according to the procedure provided for by law, to establish local levies; municipal councils may provide for tax and levy concessions at the expense of their own budgets.

Article 122

Municipal councils shall have the right to apply to a court regarding the violation of their rights.

Article 123

At higher-level administrative units, governance shall be organised by the Government according to the procedure established by law.

The observance of the Constitution and laws and the execution of the decisions of the Government by municipalities shall be supervised by the representatives appointed by the Government.

The powers of the representatives of the Government and the procedure for the execution of their powers shall be established by law.

In cases and according to the procedure provided for by law, the Seimas may temporarily introduce direct rule in the territory of a municipality.

Article 124

The acts or actions of municipal councils or of their executive bodies or officials that violate the rights of citizens or organisations may be appealed against before a court.

CHAPTER XI

FINANCES AND THE STATE BUDGET

Article 125

In the Republic of Lithuania, the Bank of Lithuania shall be the central bank, which belongs to the State of Lithuania by right of ownership.

The procedure for the organisation and activities of the Bank of Lithuania, its powers, and the legal status of the Chairperson of the Board of the Bank of Lithuania, as well as the grounds for his release from duties, shall be established by law.

Amendments to the Article:

No. X-572, 25-04-2006, Valstybės žinios (Official Gazette), 2006, No. 48-1701 (29-04-2006)

Note. *To recognise that the Law of the Republic of Lithuania Amending Article 125 of the Constitution (wording of 25 April 2006; Official Gazette Valstybės žinios, No. 48-1701, 2006), in view of the procedure of its adoption, is in conflict with Paragraph 1 of Article 147 of the Constitution of the Republic of Lithuania.*

The Constitutional Court of the Republic of Lithuania, Ruling 24-01-2014, published 24-01-2014, identification code 2014-00478

[In accordance with the ruling of the Constitutional Court of 24 January 2014, from the day of the official publication of this ruling, Paragraph 2 of Article 125 of the Constitution may not be applied. This does not mean that Article 125 of the Constitution comes into force in the wording effective before the entry into force of the Law Amending Article 125 of the Constitution.]

Article 126

The Bank of Lithuania shall be directed by the Board of the Bank, consisting of the Chairperson, Deputy Chairpersons, and members.

The Chairperson of the Board of the Bank of Lithuania shall be appointed for a five-year term by the Seimas upon submission by the President of the Republic.

Article 127

The budgetary system of the Republic of Lithuania shall consist of the independent State Budget of the Republic of Lithuania and independent municipal budgets.

The revenue of the State Budget shall be raised from taxes, compulsory payments, levies, income from state-owned property, and other income.

Taxes, other payments to the budgets, and levies shall be established by the laws of the Republic of Lithuania.

Article 128

Decisions concerning state loans and other basic property liabilities of the State shall be adopted by the Seimas upon the proposal of the Government.

The procedure for the possession, use, and disposal of state-owned property shall be established by law.

Article 129

The budget year shall start on the 1st of January and shall end on the 31st of December.

Article 130

The Government shall draw up a draft State Budget and present it to the Seimas not later than 75 days before the end of the budget year.

Article 131

The draft State Budget shall be considered by the Seimas and shall be approved by law before the start of the new budget year.

During the consideration of the draft budget, the Seimas may increase expenditure provided that it specifies financial sources for the additional expenditure. The expenditure established by law may not be reduced as long as these laws are not altered.

Article 132

If the State Budget is not approved on time, in such cases, at the beginning of the budget year, the budget expenditure each month may not exceed 1/12 of the expenditure of the State Budget of the previous budget year.

During the budget year, the Seimas may change the budget. It shall be changed according to the same procedure according to which it is drawn up, adopted, and approved. When necessary, the Seimas may approve an additional budget.

CHAPTER XII THE NATIONAL AUDIT OFFICE

Article 133

The system and powers of the National Audit Office shall be established by law.

The National Audit Office shall be headed by the Auditor General, who shall be appointed for a five-year term by the Seimas upon submission by the President of the Republic.

Before taking office, the Auditor General shall take an oath. The oath shall be established by law.

Article 134

The National Audit Office shall supervise the lawfulness of the possession and use of state-owned property and the execution of the State Budget.

The Auditor General shall submit a conclusion to the Seimas concerning the report on the annual execution of the budget.

CHAPTER XIII FOREIGN POLICY AND NATIONAL DEFENCE

Article 135

In implementing its foreign policy, the Republic of Lithuania shall follow the universally recognised principles and norms of international law, shall seek to ensure national security and independence, the welfare of its citizens, and their basic rights and freedoms, and shall contribute to the creation of the international order based on law and justice.

In the Republic of Lithuania, war propaganda shall be prohibited.

Article 136

The Republic of Lithuania shall participate in international organisations provided that this is not in conflict with the interests and independence of the State.

Article 137

There may not be any weapons of mass destruction and foreign military bases on the territory of the Republic of Lithuania.

Article 138

The Seimas shall ratify or denounce the following international treaties of the Republic of Lithuania:

- 1) on the alteration of the boundaries of the State of the Republic of Lithuania;
- 2) on political co-operation with foreign states; mutual assistance treaties; as well as treaties of a defensive nature related to the defence of the State;
- 3) on the renunciation of the use of force or threatening by force; as well as peace treaties;
- 4) on the presence and status of the armed forces of the Republic of Lithuania on the territories of foreign states;
- 5) on the participation of the Republic of Lithuania in universal international organisations and regional international organisations;
- 6) multilateral or long-term economic treaties.

Laws, as well as international treaties, may also provide for other cases when the Seimas ratifies international treaties of the Republic of Lithuania.

International treaties ratified by the Seimas of the Republic of Lithuania shall be a constituent part of the legal system of the Republic of Lithuania.

Article 139

The defence of the State of Lithuania against a foreign armed attack shall be the right and duty of each citizen of the Republic of Lithuania.

The citizens of the Republic of Lithuania must perform military or alternative national defence service according to the procedure established by law.

The organisation of national defence shall be established by law.

Article 140

The main issues of national defence shall be considered and co-ordinated by the State Defence Council, which consists of the President of the Republic, the Prime Minister, the Speaker of the Seimas, the Minister of National Defence, and the Commander of the Armed Forces. The State Defence Council shall be headed by the President of the Republic. The procedure for its formation and activities, as well as its powers, shall be established by law.

The President of the Republic shall be the Commander-in-Chief of the Armed Forces of the State.

The Government, the Minister of National Defence, and the Commander of the Armed Forces shall be responsible to the Seimas for the administration and command of the armed forces of the State. The Minister of National Defence may not be a serviceman who is not yet retired to the reserve.

Article 141

Persons performing actual military service or alternative service, as well as the officers of the national defence system, the police, and the interior, non-commissioned officers, re-enlistees, and other paid officials of paramilitary and security services who are not retired to the reserve, may not be Members of the Seimas or members of municipal councils. They may not hold any elective or appointive office in the civil State Service, or participate in the activities of political parties or organisations.

Article 142

The Seimas shall impose martial law, announce mobilisation or demobilisation, or adopt the decision to use the armed forces when the need arises to defend the Homeland or to fulfil the international obligations of the State of Lithuania.

In the event of an armed attack threatening the sovereignty of the State or its territorial integrity, the President of the Republic shall immediately adopt a decision on defence against the armed aggression, impose martial law throughout the State or in its separate part, or announce mobilisation, and submit these decisions for approval at the next sitting of the Seimas, or immediately convene an extraordinary session in the period between sessions of the Seimas. The Seimas shall approve or overrule the decision of the President of the Republic.

Article 143

If a regular election must be held in time of war actions, either the Seimas or the President of the Republic shall adopt the decision to extend the term of powers of the Seimas, the President of the Republic, or municipal councils. In such a case, elections must be called not later than three months after the end of the war.

Article 144

When a threat arises to the constitutional system or social peace in the State, the Seimas may declare a state of emergency throughout the territory of the State or in any part thereof. The period of the state of emergency shall not exceed six months.

In cases of urgency, between sessions of the Seimas, the President of the Republic shall have the right to adopt a decision on the state of emergency and convene an extraordinary session of the Seimas for the consideration of this issue. The Seimas shall approve or overrule the decision of the President of the Republic.

The state of emergency shall be regulated by law.

Article 145

Upon the imposition of martial law or the declaration of a state of emergency, the rights and freedoms specified in Articles 22, 24, 25, 32, 35, and 36 of the Constitution may temporarily be limited.

Article 146

The State shall take care of and provide for servicemen who lose their health during military service, as well as for the families of servicemen who lose their lives or die during military service.

The State shall also provide for citizens who lose their health while defending the State, as well as for the families of citizens who lose their lives or die in defence of the State.

CHAPTER XIV THE ALTERATION OF THE CONSTITUTION

Article 147

A motion to alter or supplement the Constitution of the Republic of Lithuania may be submitted to the Seimas by a group of not less than 1/4 of all the Members of the Seimas or not less than by 300,000 voters.

During a state of emergency or martial law, the Constitution may not be amended.

Article 148

The provision "The State of Lithuania shall be an independent democratic republic" of Article 1 of the Constitution may be altered only by referendum if not less than 3/4 of the citizens of Lithuania with the electoral right vote in favour thereof.

The provisions of the First Chapter "The State of Lithuania" and the Fourteenth Chapter "The Alteration of the Constitution" may be altered only by referendum.

Amendments to the Constitution concerning other chapters of the Constitution must be considered and voted at the Seimas twice. There must be a break of not less than three months between the votes. A draft law on the alteration of the Constitution shall be deemed adopted by the Seimas if, during each of the votes, not less than 2/3 of all the Members of the Seimas vote in favour thereof.

A failed amendment to the Constitution may be submitted to the Seimas for reconsideration not earlier than after one year.

Article 149

The President of the Republic shall sign an adopted law on the alteration of the Constitution and officially promulgate it within five days.

If the President of the Republic does not sign and promulgate such a law within the specified time, this law shall come into force when the Speaker of the Seimas signs and promulgates it.

A law on the alteration of the Constitution shall come into force not earlier than one month after its adoption.

FINAL PROVISIONS

Article 150

The constituent part of the Constitution of the Republic of Lithuania shall be:

The Constitutional Law "On the State of Lithuania" of 11 February 1991;

The Constitutional Act "On the Non-Alignment of the Republic of Lithuania to Post-Soviet Eastern Unions" of 8 June 1992;

The Law "On the Procedure for the Entry into Force of the Constitution of the Republic of Lithuania" of 25 October 1992;

The Constitutional Act "On Membership of the Republic of Lithuania in the European Union" of 13 July 2004.

Amendments to the Article:

No. IX-2343, 13-07-2004, Valstybės žinios (Official Gazette), 2004, No. 111-4123 (17-07-2004)

Article 151

This Constitution of the Republic of Lithuania shall come into force on the day following the official publication of the results of the Referendum provided that more than half of the citizens of the Republic of Lithuania with the electoral right give their consent to this Constitution in the Referendum.

Article 152

The procedure for the entry into force of this Constitution and separate provisions thereof shall be regulated by the Law of the Republic of Lithuania "On the Procedure for the Entry into Force of the Constitution of the Republic of Lithuania", which, together with this Constitution of the Republic of Lithuania, shall be adopted by referendum.

Article 153

After the adoption of this Constitution of the Republic of Lithuania by referendum, the Seimas of the Republic of Lithuania, by 25 October 1993, may alter, by a 3/5 majority vote of all the Members of the Seimas, the provisions of this Constitution of the Republic of Lithuania contained in Articles 47, 55, 56, Item 2 of the second paragraph of Article 58, in Articles 65, 68, 69, Items 11 and 12 of Article 84, the first paragraph of Article 87, in Articles 96, 103, 118, and in the fourth paragraph of Article 119.

Article 154

The Constitution of the Republic of Lithuania and the Law of the Republic of Lithuania "On the Procedure for the Entry into Force of the Constitution of the Republic of Lithuania", adopted by referendum, shall be signed and, within 15 days, promulgated by the Chairman of the Supreme Council of the Republic of Lithuania.

CHAIRMAN OF THE SUPREME COUNCIL OF THE REPUBLIC OF LITHUANIA
VYTAUTAS LANDSBERGIS

Vilnius, 6 November 1992

CONSTITUENT PART OF THE CONSTITUTION OF THE REPUBLIC OF LITHUANIA

THE CONSTITUTIONAL LAW OF THE REPUBLIC OF LITHUANIA ON THE STATE OF LITHUANIA

The Supreme Council of the Republic of Lithuania,

taking account of the fact that, during the general poll (plebiscite) held on 9 February 1991, more than three-quarters of the population of Lithuania with the active electoral right voted by secret ballot that "the State of Lithuania would be an independent democratic republic",

emphasising that, by this expression of sovereign powers and will, the Nation of Lithuania once again confirmed its unchanging stand on the independent State of Lithuania;

interpreting the results of the plebiscite as the common determination to strengthen and defend the independence of Lithuania and to create a democratic republic, and

executing the will of the Nation of Lithuania,

adopts and solemnly proclaims this Law.

Article 1

The statement "The State of Lithuania shall be an independent democratic republic" is a constitutional norm of the Republic of Lithuania and a fundamental principle of the State.

Article 2

The constitutional norm and the fundamental principle of the State as formulated in the first article of this Law may be altered only by a general poll (plebiscite) of the Nation of Lithuania provided that not less than three-quarters of the citizens of Lithuania with the active electoral right vote in favour thereof.

CHAIRMAN OF THE SUPREME COUNCIL OF THE REPUBLIC OF LITHUANIA
VYTAUTAS LANDSBERGIS

Vilnius, 11 February 1991

No. I-1051

THE CONSTITUTIONAL ACT OF THE REPUBLIC OF LITHUANIA
ON THE NON-ALIGNMENT OF THE REPUBLIC OF LITHUANIA TO POST-SOVIET EASTERN UNIONS

The Supreme Council of the Republic of Lithuania,

invoking the 16 February 1918 and 11 March 1990 Acts on the Restoration of the Independent State of Lithuania and acting upon the will of the entire Nation, as expressed on 9 February 1991, and

witnessing the attempts to preserve, in any form, the former Union of Soviet Socialist Republics with all its conquered territories, and the intentions to draw Lithuania into the defensive, economic, financial, and other “spaces” of the post-Soviet Eastern bloc,

r e s o l v e s:

1. To develop mutually advantageous relations with each state that was formerly a component of the USSR, but never join, in any form, any new political, military, economic, or other unions or commonwealths of states formed on the basis of the former USSR.
2. Any activities seeking to draw the State of Lithuania into the unions or commonwealths of states specified in the first article of this Constitutional Act shall be regarded as hostile to the independence of Lithuania, and liability for them shall be established by law.
3. There may be no military bases or army units of Russia, or the Commonwealth of Independent States or its constituent states, on the territory of the Republic of Lithuania.

CHAIRMAN OF THE SUPREME COUNCIL OF THE REPUBLIC OF LITHUANIA
VYTAUTAS LANDSBERGIS

Vilnius, 8 June 1992

No. I-2622

THE LAW OF THE REPUBLIC OF LITHUANIA
ON THE PROCEDURE FOR THE ENTRY INTO FORCE OF THE CONSTITUTION OF THE REPUBLIC OF LITHUANIA

Article 1

Upon the entry into force of the Constitution of the Republic of Lithuania, the Provisional Basic Law of the Republic of Lithuania shall become null and void.

Article 2

Laws, as well as other legal acts or parts thereof, that were in force on the territory of the Republic of Lithuania prior to the adoption of the Constitution of the Republic of Lithuania shall be effective inasmuch as they are not in conflict with the Constitution and this Law, and shall remain in force until they are either declared null and void or brought in line with the provisions of the Constitution.

Article 3

The provisions of the laws of the Republic of Lithuania that regulate the status of the supreme institutions of state power and governance of the Republic of Lithuania, as well as the status of deputies and municipal councils, shall be in force until the elected Seimas decides otherwise.

Article 4

The powers of the Supreme Council of the Republic of Lithuania and its deputies shall cease from the moment when the elected Seimas of the Republic of Lithuania convenes for its first sitting.

The Members of the Seimas of the Republic of Lithuania shall convene for the sitting on the third working day after the official announcement by the Central Electoral Commission, following both election rounds, that not less than 3/5 of all the Members of the Seimas have been elected.

Article 5

The following text of the oath for a Member of the Seimas of the Republic of Lithuania shall be established:

"I (full name),

swear to be faithful to the Republic of Lithuania;

swear to respect and uphold its Constitution and laws and to protect the integrity of its lands;

swear to strengthen, to the best of my ability, the independence of Lithuania, and to conscientiously serve my Homeland, democracy, and the welfare of the people of Lithuania.

So help me God."

The oath may also be taken by omitting the last sentence.

Article 6

During the period when there is still no President of the Republic, the legal situation shall be equivalent to the situation provided for in Article 89 of the Constitution of the Republic of Lithuania.

When necessary, the Seimas may, by a majority vote of more than half of all the Members of the Seimas, extend the terms provided for in Article 89, but for no longer than a four-month period.

Article 7

The justices of the Constitutional Court of the Republic of Lithuania and, from among them, the President of the Constitutional Court must be appointed not later than one month after the election of the President of the Republic.

When the justices of the Constitutional Court are appointed for the first time, three of them shall be appointed for a three-, three for a six-, and three for a nine-year term.

The President of the Republic, the Speaker of the Seimas, and the President of the Supreme Court, when proposing candidates to be appointed as justices of the Constitutional Court, shall indicate who of them should be appointed for a three-, who for a six-, and who for a nine-year term.

The justices of the Constitutional Court who will be appointed for three- or six-year terms may hold the same office for one more term of office after an interval of not less than three years.

Article 8

The provisions of the third paragraph of Article 20 of the Constitution of the Republic of Lithuania shall become applicable after the laws of the Republic of Lithuania on criminal procedure have been brought in line with this Constitution.

CHAIRMAN OF THE SUPREME COUNCIL OF THE REPUBLIC OF LITHUANIA
VYTAUTAS LANDSBERGIS

Vilnius, 6 November 1992

**THE CONSTITUTIONAL ACT OF THE REPUBLIC OF LITHUANIA
ON MEMBERSHIP OF THE REPUBLIC OF LITHUANIA IN THE EUROPEAN UNION**

The Seimas of the Republic of Lithuania,

executing the will of the citizens of the Republic of Lithuania, as expressed in the referendum on membership of the Republic of Lithuania in the European Union, held on 10-11 May 2003,

expressing its conviction that the European Union respects human rights and fundamental freedoms and that Lithuanian membership in the European Union will contribute to the more efficient securing of human rights and freedoms,

noting that the European Union respects the national identity and constitutional traditions of its Member States,

seeking to ensure the fully fledged participation of the Republic of Lithuania in the European integration, as well as the security of the Republic of Lithuania and welfare of its citizens,

having ratified, on 16 September 2003, the Treaty Between the Kingdom of Belgium, the Kingdom of Denmark, the Federal Republic of Germany, the Hellenic Republic, the Kingdom of Spain, the French Republic, Ireland, the Italian Republic, the Grand Duchy of Luxembourg, the Kingdom of the Netherlands, the Republic of Austria, the Portuguese Republic, the Republic of Finland, the Kingdom of Sweden, the United Kingdom of Great Britain and Northern Ireland (Member States of the European Union) and the Czech Republic, the Republic of Estonia, the Republic of Cyprus, the Republic of Latvia, the Republic of Lithuania, the Republic of Hungary, the Republic of Malta, the Republic of Poland, the Republic of Slovenia, the Slovak Republic Concerning the Accession of the Czech Republic, the Republic of Estonia, the Republic of Cyprus, the Republic of Latvia, the Republic of Lithuania, the Republic of Hungary, the Republic of Malta, the Republic of Poland, the Republic of Slovenia, the Slovak Republic to the European Union, signed on 16 April 2003 in Athens,

adopts and proclaims this Constitutional Act:

1. The Republic of Lithuania as a Member State of the European Union shall share with or confer on the European Union the competences of its state institutions in the areas provided for in the founding Treaties of the European Union and to the extent it would, together with the other Member States of the European Union, jointly meet its membership commitments in those areas, as well as enjoy membership rights.

2. The norms of European Union law shall be a constituent part of the legal system of the Republic of Lithuania. Where it concerns the founding Treaties of the European Union, the norms of European Union law shall be applied directly, while in the event of the collision of legal norms, they shall have supremacy over the laws and other legal acts of the Republic of Lithuania.

3. The Government shall inform the Seimas about the proposals to adopt the acts of European Union law. As regards the proposals to adopt the acts of European Union law regulating the areas that, under the Constitution of the Republic of Lithuania, are related to the competences of the Seimas, the Government shall consult the Seimas. The Seimas may recommend to the Government a position of the

Republic of Lithuania in respect of these proposals. The Seimas Committee on European Affairs and the Seimas Committee on Foreign Affairs may, according to the procedure established by the Statute of the Seimas, submit to the Government the opinion of the Seimas concerning the proposals to adopt the acts of European Union law. The Government shall assess the recommendations or opinions submitted by the Seimas or its Committees and shall inform the Seimas about their execution following the procedure established by legal acts.

4. The Government shall consider the proposals to adopt the acts of European Union law following the procedure established by legal acts. As regards these proposals, the Government may adopt decisions or resolutions for the adoption of which the provisions of Article 95 of the Constitution are not applicable.

The Law Supplementing the Constitution of the Republic of Lithuania with the Constitutional Act "On Membership of the Republic of Lithuania in the European Union" and Supplementing Article 150 of the Constitution of the Republic of Lithuania (No. IX-2343) of 13 July 2004,

Valstybės žinios (Official Gazette), 2004, No. 111-4123